

Several decisions have held (with reference to CA/3/19, section VI) that, at the third level of the convergent approach, the boards of appeal are free to use the criteria set out in Art. 13(1) RPBA 2020 when deciding, in the exercise of their discretion in accordance with Art. 13(2) RPBA 2020, whether to admit an amendment made at this stage of the proceedings (see e.g. T 989/15, T 584/17, T 954/17, T 752/16, T 764/16, T 709/16 and T 995/18). As emphasised by T 2429/17, at the third level of the convergent approach, the board may rely on criteria applicable at the second and first levels of the convergent approach, i.e. those set out in Art. 13(1) and Art. 12(4) to (6) RPBA 2020.

In T 2486/16 the board explained that the criteria of Art. 13(1) RPBA 2020 could supplement, but not supplant, the separate requirements of Art. 13(2) RPBA 2020.

4.5.2 Transitional provisions

According to Art. 25(3) RPBA 2020, where the summons to oral proceedings or a communication of the board under R. 100(2) EPC was notified before the date of entry into force (1 January 2020), new Art. 13(2) RPBA 2020 does not apply. Instead, Art. 13 RPBA 2007 continues to apply. As stated in T 764/16, whether or not Art. 13(2) RPBA 2020 is applicable does not depend on the date on which the appeal was filed (in the case in hand, four years earlier).

a) Application of Article 13(1) RPBA 2020 and/or Article 13 RPBA 2007 in transitional cases

For the procedural situation where the summons to oral proceedings or a communication of the board under R. 100(2) EPC was notified before the date of entry into force of the RPBA 2020, but the decision was taken after their entry into force, numerous boards have come to the conclusion that, according to Art. 25(1) and (3) RPBA 2020, Art. 13 RPBA 2007 and Art. 13(1) RPBA 2020 **apply simultaneously** (see T 2227/15, T 634/16, summarised below, and e.g. T 513/15, T 700/15, T 1187/15, T 731/16, T 2129/16, T 886/17).

In T 584/17 the board found that it was at liberty to use the criteria in Art. 13(1) RPBA 2020 when deciding whether to admit an amended case under Art. 13 RPBA 2007 (similarly, T 989/15; see also T 1656/14 and T 1533/15, in which the boards applied Art. 13 RPBA 2007 alone, without addressing whether Art. 13(1) RPBA 2020 was applicable).

By contrast, the board in T 2688/16 took the view that, under Art. 24(1) and 25(1) and (3) RPBA 2020, **only Art. 13(1) RPBA 2020** was applicable to appeal proceedings pending on 1 January 2020, holding that the legislator had deliberately chosen to apply this provision, which was more stringent than the previous one, to already pending cases. In T 446/16 the board considered that, having regard to Art. 25(3) RPBA 2020, it was unclear which version of Art. 13(1) RPBA was applicable, but this legal question could, it found, be **left unanswered** as the two versions did not contradict each other.

- b) No contradiction between Article 13(1) RPBA 2020 and Article 13 RPBA 2007 or the EPC

In T 634/16 the board noted that Art. 13(1) RPBA 2020 provided more detail than the 2007 version on the conditions for admitting amendments to an appeal case. Nevertheless, it could not see any contradiction or incompatibility between the two provisions. On the contrary, in view also of the case law developed on the applicable criteria under Art. 13(1) RPBA 2007, the board held that the revised version codified and consolidated established practice in this area. In the same vein, see also T 32/16 (by the same board), according to which the difference between the 2007 and 2020 versions merely reflected much of the case law developed under Art. 13(1) RPBA 2007. Numerous decisions have since endorsed this reasoning. See e.g. T 102/16, T 446/16, T 1480/16, T 1554/16, T 1597/16, T 278/17, T 584/17, T 658/17, T 1014/17, T 552/18.

The board in T 700/15 likewise considered that Art. 13(1) RPBA 2020 essentially codified the case law developed under Art. 13(1) RPBA 2007. It also rejected the appellant's view that the boards' power to exercise discretion when it came to admitting requests with amended patent claims was at odds with the prohibition under Art. 23 RPBA 2007 of any application of the RPBA that would lead to a situation incompatible with the spirit and purpose of the EPC. The purpose of this discretion conferred on the boards was instead to guarantee, in view of the primary object of appeal proceedings, a fair procedure satisfying the legitimate interests of both the patent proprietor and the opponent by ensuring that the need for procedural economy, the complexity of any new submissions and their suitability to overcome any objections were taken into account (cf. Art. 12(4) and 13(1) RPBA 2020).

- c) Applicability of Article 13(2) RPBA 2020 in cases of postponement of oral proceedings

In T 950/16 and T 1156/15 the boards considered it immaterial for the application of Art. 25(3) RPBA 2020 that a further summons had been notified after the entry into force of the RPBA 2020, replacing the summons notified before then. The applicable law did not depend on the date of a later summons. Hence, the admittance of the new submissions was governed by Art. 13 RPBA 2007. See also T 1511/15.

- d) Applicability of Article 13(2) RPBA 2020 in cases where the statement of grounds of appeal or the reply was filed before the entry into force of the RPBA 2020

In T 1775/18 the appellant pointed out that it had filed its statement of grounds of appeal before the entry into force of the RPBA 2020. Applying the strict criteria of Art. 13(2) RPBA 2020 to the case in hand would therefore go against procedural fairness. The board, however, had no doubt that the legislator had been aware of, and accepted, the difficulties faced by appellants of pending appeals. In this context, the board noted that the text of the RPBA 2020 had been published well before their entry into force, thus leaving appellants of pending appeals time to consider whether their statement of grounds of appeal needed to be supplemented. See also T 884/18.

4.5.3 Amendment to an appeal case within the meaning of Article 13(2) RPBA 2020

Art. 13(2) RPBA 2020 provides that any amendment to a party's appeal case made after the expiry of a period specified by the board in a communication under R. 100(2) EPC or after notification of a summons to oral proceedings will, in principle, not be taken into account. On what is meant by "amendment to a party's appeal case", see chapter V.A.4.2.2 "Second third levels of the convergent approach: amendments to an appeal case within the meaning of Article 13(1) and (2) RPBA 2020".

4.5.4 Cogent reasons put forward by party to demonstrate exceptional circumstances

a) Principles

Art. 13(2) RPBA 2020 provides that, for new submissions at the third level of the convergent approach to be taken into account, the party concerned must **justify** with cogent reasons that there are exceptional circumstances (see e.g. T. 1107/16, T. 2486/16, T. 482/19). In T. 552/16, for instance, the board did not admit a late filed document, because exceptional circumstances for its late filing within the meaning of Art. 13(2) RPBA 2020 had **neither** been **presented nor** were they **evident** from the case (see also T. 48/17). The board in T. 1294/16, however, found that there was no need for a party to put forward cogent reasons where the circumstances were beyond that party's control and the board itself, bearing in mind the purpose of the convergent approach, considered ex officio the circumstances to be exceptional (see also T. 1790/17).

Exceptional circumstances within the meaning of Art. 13(2) RPBA 2020 generally concern new or unforeseen developments in the appeal proceedings themselves, such as new objections raised by the board or another party (T. 2329/15, see also T. 1702/18), whereas the normal course of events does not justify late submissions (see e.g. T. 1870/15, T. 2214/15, T. 2539/16).

Exceptional circumstances have been acknowledged where, for instance, the filing of new requests constituted a legitimate and timely response to a new objection raised by the board (in its communication under Art. 15(1) RPBA 2020, see e.g. T. 1255/18, or at the oral proceedings, see e.g. T. 1561/15). In this context, a "new objection" means one not covered by those previously raised by the board or a party (T. 2610/16, T. 42/17).

In contrast, where an objection had already been raised by the first-instance division or a party, the board's raising of these objections (e.g. T. 1187/16; even where this involved a change in the board's opinion, e.g. T. 752/16, T. 995/18), or objections merely developing the objections originally raised or stating them more precisely (e.g. T. 2539/16, T. 1080/15) or objections to unsuccessful attempts at overcoming previously identified issues (T. 2214/15) been seen as an ordinary development in the appeal proceedings which could not justify the filing of new requests.

Documents and new lines of attack filed in reply to a preliminary opinion of the board which was based exclusively on earlier submissions made by the parties have likewise not been admitted (T. 908/19).

Several decisions deal with the question of whether there has to be a **causal link** between the exceptional circumstances and the late filing of the new submissions (see chapter V.A.4.5.4b)). In T.2486/16, for instance, the board required that the party should explain why the circumstances had the direct result of preventing it from filing its requests at an earlier stage.

In some decisions, the boards have read "exceptional circumstances" more broadly. In T.713/14, for instance, the board, when assessing whether there were exceptional circumstances, took the entire background to the case into account (including the fact that the clarity objection had been held to be unjustified by the opposition division, that the case had been pending since long before entry into force of the RPBA 2020, and the disruptive consequences of the COVID-19 pandemic), as well as the fact that the amendments limited the case to embodiments that were explicitly present in the claims as granted and that the appellant had had ample opportunity to object to all embodiments claimed. In T.545/18 the board acknowledged that there were exceptional circumstances within the meaning of Art. 13(2) RPBA 2020 in the case in hand, considering the great importance of the right invoked by the appellant (right to be heard) and the facts that no other party was affected by the late filing and that the board was in a position to take a decision without needing to postpone oral proceedings.

In T.1294/16 the board noted that the example of exceptional circumstances provided in the explanatory remarks in CA/3/19 (namely a new objection raised by the board) suggested that exceptionality was not necessarily linked to events being exceptional in the sense of deviating from the expected, but could also be caused by considerations related to the legal framework, notably the principles underlying the Rules of Procedure. Art. 12 and 13 RPBA 2020 implemented the "convergent approach", the major motivation for which was the procedural economy of the appeal proceedings. The board deduced from this that if admittance of a (late-filed) submission was **not detrimental to procedural economy**, it was appropriate to accept that there were "exceptional circumstances" within the meaning of Art. 13(2) RPBA 2020, provided that this did not adversely affect the other party. In the case in hand, the board admitted the three late-filed auxiliary requests, since they were filed in ex parte proceedings and the board was able to deal with the amendment without undue delay during the oral proceedings. See also e.g. T.195/20 and T.1598/18 (by the same board), as well as T.1857/19 (considering that the fact that an amendment significantly enhanced procedural economy by clearly overcoming existing objections without giving rise to any new issues could be seen as an exceptional circumstance).

b) Causal link between the exceptional circumstances and the late filing

In T.2486/16 the board emphasised that, when filing new submissions in the appeal phase specified in Art. 13(2) RPBA 2020, a party, in providing "cogent reasons", should not only identify the circumstances invoked and explain why they should be regarded as exceptional but also explain why these circumstances had the **direct result** of preventing it from filing its requests at an earlier stage. In the case in hand, the appellant, which had filed the new request at issue and was successor in title of the original applicant, had invoked receivership and a transfer of ownership as exceptional circumstances. However, in the view of the board, even if these difficulties experienced by the original applicant were

considered to constitute exceptional circumstances within the meaning of Art. 13(2) RPBA 2020, the requirement of establishing a **causal link** had not been fulfilled. The new appellant had submitted no evidence that the original applicant had been experiencing any such difficulties at the date of filing the statement of grounds of appeal, i.e. at the time when any auxiliary requests on which the appellant wished to rely should have been filed pursuant to Art. 12(3) RPBA 2020. See also T 482/19 and T 2463/16.

In T 2539/16 the board remarked that filing new requests more than eight months after the communication under Art. 15(1) RPBA 2020 and only a few weeks before the oral proceedings would not even have been justifiable under Art. 13(2) RPBA 2020 if there had been surprising statements in the communication.

Likewise in T 1707/17, which concerned a request filed during oral proceedings, the board emphasised that Art. 13(2) RPBA 2020 required the party not only to explain why the case involved exceptional circumstances but also to explain why its amendment, in terms of both **content and timing**, was a **justified response** to these circumstances. In particular, where a party sought to amend its case at a very late stage in the proceedings, the cogent reasons referred to in Art. 13(2) RPBA 2020 should include reasons why it had not been possible to file such an amendment earlier. In this context the board referred to T 1033/10, which had held with regard to Art. 13(1) RPBA 2007 that the state of the proceedings and the need for procedural economy taken together implied a requirement on a party to present appropriate requests as soon as possible if such requests were to be admitted and considered. In the board's view, there were no such cogent reasons in the case in hand.

However, in other decisions no such causal link condition was required. In T 545/18 the appellant had argued for the first time during oral proceedings before the board that a violation of its right to be heard had occurred in examination proceedings. The board acknowledged that there were exceptional circumstances within the meaning of Art. 13(2) RPBA 2020, considering the great importance of this right and the facts that **no other party was affected** by the late filing and that the board was in a position to take a decision on this issue without needing to postpone oral proceedings. For a further decision in which "exceptional circumstances" were construed broadly, see T 713/14 (summarised in chapter V.A.4.5.4a).

4.5.5 New requests filed – exceptional circumstances established

a) Objections raised for the first time in board's communication

In T 1255/18 the board observed that, as was apparent from the appellant's (applicant's) submissions, the filing of the auxiliary requests concerned constituted not only a legitimate but also a timely response to the additional objection under Art. 76(1) EPC, raised by the board in the communication under Art. 15(1) RPBA 2020. The amendment introduced into these auxiliary requests did not go beyond amending the feature whose presence in the higher-ranking requests had been newly objected to by the board. The board acknowledged that there were exceptional circumstances within the meaning of